



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2324: fire code; municipalities; county buildings

KUPPER FLOOR AMENDMENT

1. Removes references to the exemption of county-owned buildings from state fire code inspection.
2. Replaces the exemption petition process with a request process for municipalities to enter into an intergovernmental agreement with a county, on behalf of the Office of the State Fire Marshal (Office), to enforce the fire code adopted by the municipality for county-owned buildings.
3. Stipulates that the Office Assistant Director and the applicable municipal official jointly determine if the municipality's current fire code and enforcement is not less stringent than the current state fire code.
4. Requires municipalities that enter into an intergovernmental agreement for fire code inspection to provide the Office with a record of the certificate of occupancy and applicable fire code inspection reports with specified information in a manner determined by the Office.

M. LAVENDER

3/2/2026

(602) 926-3848

KUPPER FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2324
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 37-1383, Arizona Revised Statutes, is amended
3 to read:

4 37-1383. Powers and duties; construction plans and
5 specifications; permit applications; arson
6 investigators

7 A. Under the authority and direction of the state forester, the
8 assistant director of the office of the state fire marshal or a deputy
9 fire marshal or an assistant fire inspector who is acting at the direction
10 of the assistant director of the office of the state fire marshal shall:

11 1. Assist in the enforcement of state laws and ordinances of cities
12 and counties relating to fire prevention and fire protection.

13 2. Adopt by rule a state fire code establishing minimum standards
14 for:

15 (a) Safeguarding life and property from fire and fire hazards.

16 (b) The prevention of fires and alleviation of fire hazards.

17 (c) The storage, sale, distribution and use of dangerous chemicals,
18 combustibles, flammable liquids, explosives and radioactive materials.

19 (d) The installation, maintenance and use of fire escapes, fire
20 protection equipment, fire alarm systems, smoke detectors and fire
21 extinguishing equipment.

22 (e) The means and adequacy of fire protection and exit in case of
23 fire in places in which numbers of persons work, live or congregate,
24 excluding family dwellings that have fewer than five residential dwelling
25 units.

26 (f) Other matters relating to fire prevention and control that are
27 considered necessary by the office of the state fire marshal.

~~3. Adopt rules and a schedule of fees for permits, plan submissions, plan reviews and reinspections that are payable by persons regulated under this article.~~

~~4. Adopt rules for the allocation of monies from the arson detection reward fund established by section 37-1387. The rules shall be consistent with the purposes set forth in section 37-1387 and shall promote the effective and efficient use of the fund monies.~~

~~5. Enforce compliance with the fire code adopted pursuant to this subsection throughout this state except in any city with a population of one hundred thousand persons or more that has in effect a nationally recognized fire code, whether modified or unmodified, and that has enacted an ordinance to assume such jurisdiction from the office of the state fire marshal. EXCEPT AS PROVIDED IN SECTION 37-1392, such cities do not have authority that supersedes and are not exempt from the state fire code adopted pursuant to paragraph 2 of this subsection in state or county owned buildings wherever located throughout this state.~~

~~6. Cooperate and coordinate with other state agencies in the administration of the state fire code.~~

~~7. Establish a regularly scheduled fire safety inspection program for all state and county owned public buildings and all public and private school buildings wherever located throughout this state, except for private school buildings in cities with a population of one hundred thousand or more persons.~~

~~8. Inspect as necessary all other occupancies located throughout this state, except family dwellings having fewer than five residential dwelling units and occupancies located in cities with a population of one hundred thousand or more persons.~~

~~9. At the written request of county or municipal authorities, make and provide to them a written report of the examination made by the office of the state fire marshal of any fire within their jurisdiction.~~

~~10. Administer the arson detection reward fund established by section 37-1387.~~

~~B. Except as provided in subsection 6 of this section, all plans and specifications for new construction, remodeling, alterations and additions for state, county and public school buildings and grounds shall be submitted to the state forester for review and approval by the assistant director of the office of the state fire marshal or as authorized to a deputy fire marshal or an assistant fire inspector acting at the direction of the assistant director of the office of the state fire marshal before construction. The state forester shall adopt rules to implement a one-phase and a two-phase construction, remodeling, alteration or addition permit. A person may choose to submit either a one-phase or a two-phase permit application.~~

~~C. For a one-phase permit application, within sixty days after receiving a valid permit application, the state forester shall make a final determination to approve or deny the permit application. Construction may not commence until the plans have been approved and a~~

1 ~~permit has been issued or unless the state forester has not taken action~~
2 ~~on a permit application within sixty days after receiving a valid~~
3 ~~application.~~

4 ~~D. For a two-phase application, within thirty days after receiving~~
5 ~~a valid permit application, the state forester shall review the plans and~~
6 ~~specifications and make an initial determination to approve or deny the~~
7 ~~permit. Within sixty days after a valid submission, the state forester~~
8 ~~shall make a final determination to approve or deny the permit~~
9 ~~application. Construction shall not commence beyond the constraints of~~
10 ~~phase one until the plans have been approved and a permit has been issued~~
11 ~~or unless the state forester has not taken action on phase two of a permit~~
12 ~~application within sixty days after receiving a valid application.~~

13 ~~E. Under the authority and direction of the state forester, the~~
14 ~~assistant director of the office of state fire marshal or a deputy fire~~
15 ~~marshal or an assistant fire inspector acting at the direction of the~~
16 ~~assistant director of the office of the state fire marshal may:~~

17 ~~1. Conduct or participate in investigations of causes, origins and~~
18 ~~circumstances of fires, including cases of possible arson.~~

19 ~~2. Prescribe a uniform system of reporting fires and their causes~~
20 ~~and effects.~~

21 ~~3. Provide and coordinate training in firefighting and fire~~
22 ~~prevention and cooperate with educational institutions to provide and~~
23 ~~further such training.~~

24 ~~4. Impound necessary evidence in conjunction with investigations of~~
25 ~~causes, origins and circumstances of fires if that evidence might be lost,~~
26 ~~destroyed or otherwise altered if not impounded.~~

27 ~~5. Employ specialized testing services to evaluate evidence and~~
28 ~~conditions involved in fire investigations.~~

29 ~~6. Designate certain members of the office of the state fire~~
30 ~~marshal's staff or a deputy fire marshal or an assistant fire inspector as~~
31 ~~arson investigators.~~

32 ~~F. The primary duty of investigators designated pursuant to~~
33 ~~subsection E, paragraph 6 of this section is the investigation, detection~~
34 ~~and apprehension of persons who have violated or are suspected of~~
35 ~~violating any provision of title 13, chapter 17. A person designated as~~
36 ~~an arson investigator, while engaged in arson investigation in this state,~~
37 ~~possesses and may exercise law enforcement powers of peace officers of~~
38 ~~this state. This subsection does not grant any powers of peace officers~~
39 ~~of this state to arson investigators other than those necessary for the~~
40 ~~investigation, detection and apprehension authority granted by this~~
41 ~~subsection. Any individual designated as an arson investigator shall have~~
42 ~~law enforcement training under section 41-1822.~~

43 ~~G. A city or town may allow all plans and specifications for new~~
44 ~~construction, remodeling, alterations and additions for municipal or~~
45 ~~private buildings and grounds to be submitted to the city or town for~~
46 ~~review and approval by a person designated by the city or town as~~
47 ~~knowledgeable of the state fire code. If the city or town adopts a~~

1 ~~process to approve construction permits pursuant to this subsection, the~~
2 ~~plans and specifications shall be reviewed and approved or disapproved~~
3 ~~within sixty days after submission. Construction shall not commence until~~
4 ~~the plans and specifications have been approved and a permit has been~~
5 ~~issued.-->>~~

6 Section 1. Title 37, chapter 9, article 4, Arizona Revised
7 Statutes, is amended by adding section 37-1392, to read:

8 37-1392. Fire code; municipal review; county-owned buildings;
9 request; exemption; time frame

10 A. A CITY OR TOWN THAT HAS ADOPTED AN ORDINANCE PURSUANT TO SECTION
11 37-1383, SUBSECTION A, PARAGRAPH 5 MAY ~~[PETITION]~~ [REQUEST] THE ASSISTANT
12 DIRECTOR OF THE OFFICE OF THE STATE FIRE MARSHAL TO ~~[EXEMPT]~~ [ENTER INTO
13 AN INTERGOVERNMENTAL AGREEMENT WITH A COUNTY ON BEHALF OF THE OFFICE OF
14 THE STATE FIRE MARSHAL TO ENFORCE THE FIRE CODE ADOPTED BY THE CITY OR
15 TOWN FOR] COUNTY-OWNED BUILDINGS ~~[FROM STATE FIRE CODE INSPECTION]~~ IF ALL
16 OF THE FOLLOWING CONDITIONS APPLY:

17 1. THE CITY OR TOWN SUBMITS THE ~~[PETITION]~~ [REQUEST] IN CONJUNCTION
18 WITH THE APPLICABLE COUNTY.

19 2. THE ~~[REVIEW OF]~~ [ENFORCEMENT OF THE STATE ADOPTED FIRE CODE FOR]
20 COUNTY-OWNED BUILDINGS IS UNDULY BURDENSOME FOR THE CITY OR TOWN OR THE
21 COUNTY. EVIDENCE OF ANY OF THE FOLLOWING IS SUFFICIENT TO PROVE THE
22 ~~[REVIEW]~~ [ENFORCEMENT] IS UNDULY BURDENSOME:

23 (a) THE ~~[REVIEW]~~ [ENFORCEMENT OF THE STATE ADOPTED FIRE CODE]
24 REQUIRES THE HIRING OF ADDITIONAL STAFF.

25 (b) THE ~~[REVIEW]~~ [ENFORCEMENT OF THE STATE ADOPTED FIRE CODE]
26 REQUIRES ADDITIONAL STAFF TRAINING.

27 (c) REVIEW BY THE ASSISTANT DIRECTOR OF THE OFFICE OF THE STATE
28 FIRE MARSHAL SUBSTANTIALLY EXCEEDS THE TIME FRAME FOR REVIEW IF REVIEWED
29 BY THE CITY OR TOWN OR APPLICABLE COUNTY.

30 3. THE CITY'S OR TOWN'S CURRENT FIRE CODE AND ENFORCEMENT,
31 INCLUDING THE OCCUPANCY AND HAZARD REGULATION APPLICABLE TO THE
32 COUNTY-OWNED BUILDINGS, ARE NOT SUBSTANTIALLY LESS STRINGENT THAN THE
33 CURRENT STATE FIRE CODE AS DETERMINED [JOINTLY] BY THE [ASSISTANT DIRECTOR
34 OF THE OFFICE OF THE STATE FIRE MARSHAL AND THE] APPLICABLE OFFICIAL AT
35 THE CITY OR TOWN.

36 B. THE ASSISTANT DIRECTOR OF THE OFFICE OF THE STATE FIRE MARSHAL
37 SHALL TAKE ACTION ON A ~~[PETITION]~~ [REQUEST] WITHIN THIRTY DAYS AFTER
38 RECEIPT AND SHALL STATE THE REASON FOR THE DENIAL OR APPROVAL OF THE
39 ~~[PETITION]~~ [REQUEST]. IF THE ASSISTANT DIRECTOR OF THE OFFICE OF THE
40 STATE FIRE MARSHAL DOES NOT TAKE ACTION ON A ~~[PETITION]~~ [REQUEST] WITHIN
41 THIRTY DAYS AFTER RECEIPT, THE ~~[PETITION]~~ [REQUEST] IS AUTOMATICALLY
42 APPROVED.

43 C. A CITY OR TOWN THAT ~~[RECEIVES PETITION APPROVAL]~~ [ENTERS INTO AN
44 INTERGOVERNMENTAL AGREEMENT] PURSUANT TO THIS SECTION IS SOLELY
45 RESPONSIBLE FOR THE INSPECTION AND ENFORCEMENT OF THE FIRE CODE IN ALL
46 COUNTY-OWNED BUILDINGS IN THE CITY'S OR TOWN'S JURISDICTION.

1 ~~[D. IF A CITY OR TOWN ADOPTS AN AMENDMENT THAT MATERIALLY WEAKENS~~
2 ~~THE CITY'S OR TOWN'S FIRE CODE AFTER A PETITION'S APPROVAL BY THE STATE~~
3 ~~FIRE MARSHAL, THE CITY OR TOWN SHALL PROMPTLY NOTIFY THE OFFICE OF THE~~
4 ~~STATE FIRE MARSHAL OF THE ADOPTED AMENDMENT. WITHIN THIRTY DAYS AFTER THE~~
5 ~~DATE OF SUCH AN ADOPTED AMENDMENT, THE CITY OR TOWN MAY REAPPLY FOR A~~
6 ~~WAIVER. THE PREVIOUS PETITION APPROVAL DOES NOT EXPIRE UNTIL THIRTY DAYS~~
7 ~~AFTER THE ASSISTANT DIRECTOR OF THE OFFICE OF THE STATE FIRE MARSHAL MAKES~~
8 ~~A DECISION ON THE NEW WAIVER APPLICATION.~~

9 ~~E. IF THE OFFICE OF THE STATE FIRE MARSHAL ADOPTS A SUBSTANTIALLY~~
10 ~~STRICTER STATE FIRE CODE THAN THE ONE CURRENTLY ADOPTED, THE ASSISTANT~~
11 ~~DIRECTOR OF THE OFFICE OF THE STATE FIRE MARSHAL SHALL PROMPTLY NOTIFY THE~~
12 ~~AFFECTED CITIES OR TOWNS OF THE ADOPTION. WITHIN THIRTY DAYS AFTER THE~~
13 ~~DATE OF ADOPTION OF A STRICTER STATE FIRE CODE, EACH AFFECTED CITY OR TOWN~~
14 ~~MAY REAPPLY FOR A WAIVER. THE PREVIOUS PETITION APPROVAL DOES NOT EXPIRE~~
15 ~~UNTIL THIRTY DAYS AFTER THE ASSISTANT DIRECTOR OF THE OFFICE OF THE STATE~~
16 ~~FIRE MARSHAL MAKES A DECISION ON THE NEW WAIVER APPLICATION.]~~

17 [D. A CITY OR TOWN THAT ENTERS INTO AN INTERGOVERNMENTAL AGREEMENT
18 PURSUANT TO THIS SECTION SHALL PROVIDE THE OFFICE OF THE STATE FIRE
19 MARSHAL A RECORD OF THE CERTIFICATE OF OCCUPANCY AND ALL APPLICABLE FIRE
20 CODE INSPECTION REPORTS, INCLUDING REGULARLY REQUIRED INSPECTIONS
21 CONDUCTED PURSUANT TO THE CITY'S OR TOWN'S FIRE CODE AND UPDATED BUILDING
22 INVENTORY IN A MANNER AS DETERMINED BY THE OFFICE OF THE STATE FIRE
23 MARSHAL.]

24 Sec. 2. Short title

25 This act may be cited as the "Fire Marshal Bill Burns Act".

26 Enroll and engross to conform

27 Amend title to conform

NICK KUPPER

2324FloorKUPPER.docx

02/24/2026

05:42 PM

C: CT

130TIQEDA